Arguing that heterosexual marriage is "foundational to both the existence and continuance of the State", the government in the apex court contended that "there exists a legitimate State interest in limiting the legal recognition of marriage to persons of opposite sexes only". It refused to put same-sex unions on par with heterosexual marriages, saying same-sex individuals living together as a couple is not the same as how a family unit, comprising a man, woman and their children, is organised in India.

The Union government also rejected the demand to make SMA gender-neutral. It would lead to multiple administrative complications, Mehta argued. For instance, under the SMA, the wife has the right to claim alimony. She can demand divorce if the husband is convicted of raping another person. The wife is also entitled to file for divorce in any jurisdiction of her convenience, not the husband. If the law is read in a gender-neutral way, such gender-specific rights might disappear, it is alleged. Marriages are also linked to other laws such as the IPC, adoption and inheritance rules, the government argued. If same-sex marriages are legalised without related laws having the framework to accommodate the development, there will be chaos, it was argued.

Social Pressures

Opposition to equal rights for same-sex partners has also come from within the legal fraternity as well as political and societal quarters. In an unusual statement on April 23, the Bar Council of India echoed the government argument, decrying the Supreme Court taking up the matter and stating that any tinkering with the fundamental social structure must come through the legislative process. "It would be catastrophic to overhaul something as fundamental as the concept of marriage," read the apex bar body's statement. In March, 21 retired high court judges wrote an open letter to the Supreme Court saying allowing same-sex marriage would have a "devastating impact on children, family and society". The judges said that it could increase the incidence of HIV-AIDS in India and "negatively affect the psychological and emotional development of children raised by same-sex couples".

The RSS, the ideological fountainhead of the ruling BJP, has also drawn a line at legalising same-sex marriages,



INDUNIBH SAIKIA

RITUPARNA BORAH, *42*
Queer activist (left)

AMRITA TRIPATHI, *35*
PR professional

Rituparna is from Moutorchuk, a tiny village in Assam's Lakhimpur district, and Amrita from Saharanpur, UP. They are now based in Delhi

'RURAL INDIA IS OFTEN MORE PROGRESSIVE'

Rituparna and Amrita have been seeing each other since 2016. The couple found acceptance from almost everyone in their families, except Rituparna's brother. "It's my super-educated brother and his wife, a former law professor, who have been a source of harassment for us," says Rituparna, who in 2014 co-founded Nazariya, an organisation in Delhi working for the rights of queer people. She is also part of the Lesbian, Bisexual, Intersex Women and Transgender (LBIT) network, a pan-India group that has joined her plea in court. Family violence arising out of gender discrimination and the need for legal safeguards form the core of the petition.

> **"Family violence is a major roadblock to achieving justice, equality and freedom for LGBTQ+ individuals"**
>
> **–RITUPARNA BORAH**

The duo also feels that rural India has been much more accommodative of such relationships, and also points out how the people of Moutorchuk have accepted them with warm hearts. "Amrita also took part in the rituals when my father passed away last year. Nobody objected in the village," says Rituparna.